

COMMITTEE ON APPROPRIATIONS, TRANSPORTATION AND TECHNOLOGY
SENATE AMENDMENTS TO S.B. 1179
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[GREEN STRIKEOUT IN BRACKETS] indicates new text removed from statute or previously enacted session law.

[Green strikeout in brackets] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<Green strikeout in carets>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 36-595.03, Arizona Revised Statutes, is amended
3 to read:

4 36-595.03. Developmental disabilities group home monitoring
5 program; clients with complex needs; designated
6 entity duties; expedited referral system;
7 reporting requirements; program review;
8 definition

9 A. The developmental disabilities group home monitoring program is
10 established in the department. ~~Subject to available appropriations,~~ The
11 department shall contract with the entity that has been designated by this
12 state to operate the protection and advocacy system for persons with
13 developmental disabilities in this state pursuant to the developmental
14 disabilities assistance and bill of rights act of 2000 (42 United States
15 Code sections 15041 through 15045) to conduct the program.

16 B. The designated entity, at a minimum, shall do all of the
17 following beginning January 1, 2026:

18 1. Monitor in person the group homes that provide services to
19 clients with complex needs to determine, at a minimum, whether:

20 (a) The client with complex needs receives the services identified
21 in the person-centered service plan of the client with complex needs,
22 including medication monitoring and habilitation treatment, as applicable.

23 (b) The provision of services identified in the person-centered
24 service plan of the client with complex needs has been effective in
25 addressing the complex needs.

26 (c) A behavior treatment plan is in place, is compliant with
27 department rules and has had a positive impact on behaviors that
28 interfered with the ability of the client with complex needs to live
29 safely in the community.

1 2. Use a monitoring tool to assess whether the following criteria
2 were satisfied:

3 (a) The client with complex needs received the physical health and
4 behavioral health services that the client requires as outlined by the
5 client's health care providers and person-centered service plan, including
6 regular physical activity with modification for the client's physical
7 disability, if any.

8 (b) The client with complex needs had the client's dietary
9 requirements met, including compliance with all dietary orders from the
10 client's health care providers.

11 (c) The food provided in the group home met generally accepted
12 dietary standards and guidelines for healthy Americans in accordance with
13 the United States department of agriculture dietary guidelines.

14 (d) The guardian of the client with complex needs and the client,
15 as applicable, were included in all decisions made regarding the client
16 and informed of any changes to the client's regular activities or daily
17 routine.

18 (e) Group home direct care staff demonstrated the knowledge and
19 skills required to meet the medical and behavioral health care needs of
20 the client with complex needs as outlined in the client's person-centered
21 service plan and behavior treatment plan, if applicable.

22 (f) The client with complex needs had access to and used all
23 prescribed adaptive equipment.

24 (g) Group home direct care staff worked with the behavioral health
25 providers serving the client with complex needs as allowed by the client
26 or client's guardian and as outlined in the client's person-centered
27 service plan and behavior treatment plan, if applicable.

28 (h) The group home of the client with complex needs complied with
29 applicable incident reporting policies, including documenting and
30 reporting physical interventions and any other emergency measures taken.

31 3. Complete follow-up monitoring reviews for group homes that were
32 monitored pursuant to paragraph 1 of this subsection and that the
33 designated entity identified as having significant quality of care
34 concerns.

35 4. Compile and complete both of the following:

36 (a) Monthly reports to the department detailing the results of all
37 monitoring from the previous month, including identified systemic issues
38 and recommendations for improvement.

39 (b) A comprehensive annual report of all observations and outcomes
40 during the preceding year.

41 C. On or before January 1, 2026, the department shall establish an
42 expedited referral system to ensure that copies of all incident reports,
43 quality of care complaints, investigation records and client service
44 requests for each group home monitored pursuant to subsection B, paragraph
45 1 of this section are forwarded to the designated entity for review and
46 analysis pursuant to this section. If the designated entity identifies
47 concerns during its follow-up monitoring reviews, the information shall be

1 provided to the department, which shall share the allegation with the
2 service provider and the independent oversight committee on persons with
3 developmental disabilities established by section 41-3801.

4 D. The department shall:

5 1. Educate service providers on the requirements of the
6 developmental disabilities group home monitoring program and the role of
7 the designated entity.

8 2. Provide the designated entity with access to all necessary
9 information to complete the monitoring requirements pursuant to subsection
10 B of this section.

11 3. Provide the designated entity with quarterly written reports
12 responding to the issues identified in the designated entity's monthly
13 reports from the previous quarter, including identifying the actions taken
14 in response to the identified systemic issues and recommendations received
15 from the designated entity.

16 4. Publish on the department's public website all of the following:

17 (a) All of the designated entity's monthly and annual reports
18 pursuant to subsection B, paragraph 4 of this section.

19 (b) All quarterly reports from the department pursuant to paragraph
20 3 of this subsection.

21 (c) The monitoring tool and related instructions used by the
22 designated entity to monitor group homes pursuant to this section.

23 E. On or before January 15, 2026 and each January 15 thereafter,
24 the designated entity shall report to the governor, the president of the
25 senate and the speaker of the house of representatives, and provide a copy
26 of the report to the secretary of state and the independent oversight
27 committee on persons with developmental disabilities established by
28 section 41-3801, regarding the observations and outcomes of the program,
29 including systemic issues that were identified, the quality of services
30 provided to persons with developmental disabilities who have complex needs
31 in this state and any recommendations for service improvements.

32 F. On or before January 1, 2030, the health and human services
33 committees, or their successor committees, in the senate and the house of
34 representatives shall:

35 1. Review the reports submitted pursuant to subsection E of this
36 section and the department's responses pursuant to subsection D, paragraph
37 3 of this section to the designated entity's monthly reports, including
38 observations and outcomes of the program, systemic issues that were
39 identified, the quality of services provided to persons with developmental
40 disabilities who have complex needs in this state, any recommendations for
41 service improvements and actions taken by the department.

42 2. Determine whether the program should be continued, modified or
43 discontinued.

44 G. For the purposes of this section, "client with complex needs" or
45 "client" means a client with dual disorders, including psychiatric
46 disorders and developmental disabilities, who engages in behaviors that
47 are disruptive, socially inappropriate or harmful or dangerous to self or

1 others, that interfere with functioning and quality of life or that may
2 cause destruction of property.

3 <<Sec. 2. ~~Repeat~~

4 ~~Laws 2022, chapter 316, section 4, as amended by Laws 2025, chapter~~
5 ~~241, section 13, is repealed.>>~~

6 <<Sec. 2. Laws 2022, chapter 316, section 4, as amended by Laws
7 2025, chapter 241, section 13, is amended to read:

8 Sec. 4. Delayed repeal

9 Section 36-595.03, Arizona Revised Statutes, as amended by this act,
10 is repealed from and after December 31, ~~[2027]~~ [2032].>>

11 Enroll and engross to conform

12 Amend title to conform

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02/06/2026

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C: MH

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